

High Court Bar Association, Allahabad v. State of Uttar Pradesh

Citation: (2024) 6 SCC 267 | Court: Supreme Court | Year: 2024

Coram: 5-Judge Constitution Bench (Unanimous) | Subject: Civil Procedure & CPC | Provisions: Art 142, Art 226, CPC Order 39, CrPC Sec 48

I. EXECUTIVE SUMMARY & CASE GLIMPSE

The Supreme Court cannot exercise jurisdiction under Article 142 to direct that interim stays granted by High Courts will automatically vacate after 6 months. Automatic vacation of judicial stay orders without hearing parties is arbitrary and unconstitutional; High Courts are constitutional courts of record.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Art 142, Art 226, CPC Order 39, CrPC Sec 482. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Art 142, Art 226, CPC Order 39, CrPC Sec 482.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Overruled the directions in Asian Resurfacing (2018). An interim order granted after applying judicial mind continues in force until explicitly modified, vacated, or the main proceeding is disposed of. Judicial discretion cannot be supplanted by mechanical administrative expiry dates.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Overruled Asian Resurfacing (2018) automatic 6-month stay vacation doctrine.
- â€ Reaffirmed High Courts as independent constitutional courts under Article 215/226.
- â€ Ruled that Article 142 cannot be used to introduce automated statutory or judicial extinguishment.